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Case Name: *Charel Winston et al v. Peter Nguyen et al*

Case No.: 21CV385110

Introduction

On July 2, 2021, Plaintiffs Charel Winston (“Charel”) and Alma Marie Winston (“Alma”; collectively, “Plaintiffs”)² filed the original Complaint against Defendants Peter Nguyen and The Ha Vu Le (collectively, “Defendants”) alleging the following causes of action: (1) breach of contract; (2) breach of implied covenant; (3) conversion; (4) fraud; (5) violation of Business and Professions Code section 17200; and (6) negligence.

Before the Court is Plaintiffs’ motion for leave to amend to allege the following causes of action: (1) wrongful eviction / abuse of unlawful detainer process; (2) concealment; (3) fraudulent inducement and abuse of process; (4) fraudulent enrichment and constructive trust; (5) promissory estoppel / partial performance; (6) survival action for elder abuse, neglect, and civil rights violations; (7) violation of the Americans with Disabilities Act (“ADA”) / unlawful seizure and retaliation against disabled individuals; (8) conversion and unjust enrichment; (9) trespass to chattels; (10) declaratory relief; (11) tortious interferences / civil conspiracy / abuse of process / retaliatory suppression of peaceful exit; and (12) trespass and violation of tribal sovereignty. (See generally, Motion at p. 191.) There are several exhibits attached to the proposed FAC. (*Id.* at pp. 37-190.)

Defendants oppose the motion, arguing that leave to amend should be denied because (1) Plaintiffs delayed in seeking amendment; (2) Defendants would be unduly prejudiced by the addition of multiple new claims on the eve of trial; and (3) the proposed claims are barred given the El Dorado County Superior Court’s rulings and recorded title documents.³ (Opposition at p. 2:2-5.)

Trial is set for August 3, 2026.

Discussion

Legal Standard

A trial court has wide discretion, “in furtherance of justice,” to “allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) “It is well established that California courts have a policy of great liberality in allowing amendments at any stage of the proceeding

² The Court refers to the plaintiffs by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

³ Plaintiffs urge the court to disregard Defendants’ opposition papers because they were improperly served (*i.e.*, The Ha Vu Le, a party to this action, executed the proof of service). The court will overlook this procedural defect because Plaintiff filed and served a reply responding to the merits of the opposition. (See *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930 [“It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion.”])

so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163, citations and quotations omitted.)

Nevertheless, if the party seeking amendment has been dilatory and the delay has prejudiced the opposing party, the trial court has discretion to deny leave to amend. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or would add costs of preparation, an increased burden of discovery. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) “Prejudice will not be presumed but must be affirmatively demonstrated through production of evidence.” (*L&S Framing, Inc. v. Occupational Safety & Health Appeals Bd.* (2023) 93 Cal.App.5th 995, 1012.)

Analysis

Insufficient Supporting Declarations

California Rules of Court, rule 3.1324(b) requires declarations made in support of a motion for leave to amend to state “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The failure to comply with rule 3.1324(b) may be grounds to deny a motion for leave to amend. (See *Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Here, Plaintiffs’ declarations fail to state the effect of the amendment and why the amendment is necessary and proper. Furthermore, while both Plaintiffs describe preparing the nineteen exhibits appended to the proposed amended pleadings as “time-consuming”, “labor intensive”, and “painstaking work”, Plaintiffs do not disclose when these efforts began, nor when they discovered the facts underlying the new allegations. (See Motion at pp. 20:17-19, 24:2-3.) Plaintiffs simply assert in their memorandum that the facts became available only after the filing of the original Complaint. This is not sufficient.

Plaintiffs also do not clearly or adequately explain why the request could not be made sooner. Charel vaguely declares, “Following the filing of the original Complaint in this action” she was unable to prosecute this action for “a period exceeding fourteen consecutive months.” (Motion at p. 18:18-20.) Alma also vaguely declares, “Following the filing of the original Complaint”, she was ill for an unspecified period. (*Id.* at p. 22:18-20.) Aside from the Plaintiffs’ self-serving declarations, there is no evidence that Plaintiffs received a medical diagnosis preventing them from participating in this action. Moreover, it is unclear from the declarations when exactly Plaintiffs took their medical leave. From the reply, Plaintiffs appear to suggest that Charel was restricted from litigating this action in 2024. (Reply at p. 5:20-21.) Plaintiffs, however, do not explain why the request for leave to amend could not have been made prior to 2024, when the action had already been pending for almost three years. One plaintiff’s inability to prosecute the case for fourteen months, without more, does not excuse a nearly five-year delay in seeking amendment.

Given the mandatory nature of California Rules of Court, rule 3.1324(b) and Plaintiffs’ failure to comply, the motion for leave to amend is DENIED without prejudice.

Conclusion

Plaintiffs' motion for leave to amend is DENIED without prejudice.

The court will prepare the Order.

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Case Name: *Hamid Khazaeli v. Julie B. Cliff, et al.*

Case No.: 24CV448245

Before the Court are the following motions: 1) Plaintiff's "MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION," filed on February 17, 2026, at 10:21 p.m., and 2) Plaintiff's "MOTION TO SEAL," filed February 19, 2026, at 9:17 a.m.

MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION

Plaintiff filed these motions on February 17, 2026, at 10:21 p.m.

As a threshold matter, multiple motions should not be combined into a single filing. (Gov't Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].) Among other things, combining multiple motions under the guise of one motion with one hearing date manipulates the Court's reservation system, understates the number of matters before the Court on a given day, and disturbs the Court's ability to efficiently manage its docket.

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

As for sanctions, the Notice merely states that Plaintiff requests "an order imposing sanctions". This is insufficient. "Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice." (Code Civ. Proc., § 1010.) In addition, although issue, evidentiary, and terminating sanctions are not mentioned in this original Notice, a motion for issue or evidentiary sanctions requires a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(7).) Plaintiff failed to accompany the notice with a separate statement.

Subsequent to the original filing, Plaintiff has engaged in a scattershot effort to supplement his materials:

On February 17, 2026, at 11:30 p.m., Plaintiff filed an "Amended Notice of Motion." The "Amended Notice" appears to be identical to the Notice and was also not accompanied by a separate statement.

On February 19, 2026, Plaintiff filed "Conditionally Under Seal" the same purported collection of motions, but the "Notice" filed on this date seeks "order imposing sanctions including monetary sanctions." This notice still does not mention issue, evidentiary, or terminating sanctions. It is accompanied by a longer declaration with attached exhibits, but still no separate statement directly pertaining to the motion itself.